

HCS HB 2103 -- PROTECTIONS AGAINST DOCUMENT FRAUD

SPONSOR: Amato

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Financial Institutions by a vote of 13 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 1.

The following is a summary of the House Committee Substitute for HB 2103.

This bill requires each county recorder to display a sign warning about the offense of filing false documents and the penalties associated with that offense in the recorder's office.

This bill increases the fine imposed on a vendor or manufacturer who fails to comply with laws governing the selling or manufacturing of notary seals from \$1,000 to \$10,000 for each violation.

Currently, the offense of filing false documents is a class D felony for the first offense and a class C felony for certain circumstances outlined in the bill. This bill changes the offense to a class C felony for the first offense and a class B felony for such circumstances.

The bill allows an owner of interest in real property that is subject to a filing or record that is believed to be fraudulent to petition for judicial review of the filing or record.

This bill increases the penalty for a variety of crimes associated with notarial acts from a class A misdemeanor to a class E felony.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPOSERS: Supporters say that this bill will help protect Missouri residents and deter individuals from committing fraud. Some say that this bill will strengthen notary laws.

Testifying in person for the bill were Representative Amato; Arnie C. Dienoff; Bob Nolte, Boone County Recorder Of Deeds; Missouri Bankers Association; Recorders Association of Missouri;

Missouri Independent Bankers Association (MIBA) and Missouri Land Title Association (MLTA).

OPPONENTS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.